

V.Sathyapriya vs P.Venkatesh Prabhu

Author: V.M.Velumani

Bench: V.M.Velumani

C.M.A.No.

IN THE HIGH COURT OF JUDICATURE AT MADRAS

JUDGMENT RESERVED ON
13.07.2022

JUDGMENT PRONOUNCED ON
.07.2022

CORAM:

THE HONOURABLE MS.JUSTICE V.M.VELUMANI
and
THE HONOURABLE MR.JUSTICE S.SOUNTHAR

C.M.A.No.487 of 2015
and M.P.No.1 of 2022

V.Sathyapriya

...

Vs.

P.Venkatesh Prabhu
Respondent

...

Prayer: This Civil Miscellaneous Appeal is filed under Section 19 of the Family Courts Act, 1984, against the decree and judgment dated 17.12.2009 made in O.P.No.2864 of 2009 on the file of the III Additional Family Court, Chennai.

For Appellant : Mr.V.Neethidurai

For Respondent : Mr.D.U.Kaviyanathan
for M/s.Nathan and Associates

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<https://www.mhc.tn.gov.in/judis>

C.M.A.N

[Judgment of the Court was delivered by V.M.VELUMANI,J.] The appellant is wife and respondent is husband. The respondent filed F.C.O.P.No.2864 of 2019 under Section 13(1)(i-a) of the Hindu Marriage Act, 1955, read with Section 7 of the Family Courts Act, 1986, for dissolution of marriage that was conducted between the appellant and respondent on 14.09.2008 at Krishna Sri Mahal, G.S.T. Road, Pallavaram, Chennai.

2.According to the respondent, the appellant suffered multiple fracture in her right hand and she cannot use right hand properly. The appellant's family suppressed this physical defect of the appellant and respondent came to know this only after the marriage, during their honeymoon trip. Again, within 3 days of honeymoon trip, the respondent came to know that the appellant is affected with muscular spasticity over her right hand and leg, i.e., physiological disease which will affect the muscles in such a way that they will be tensed and protracted. When the appellant's parents were confronted about the suppression, they falsely stated that they already informed the respondent's parents about the appellant's physical defect. On coming to know <https://www.mhc.tn.gov.in/judis> this defect of the appellant, the respondent's parents were depressed and they were mentally affected. The appellant was ill-treating the respondent's mother and was abusing her in filthy language. The respondent and appellant did not have cordial relationship within 10 days of marriage and the appellant became pregnant and in the medical test, it was stated that the child was under

weight. When the respondent requested for medical report of the appellant, the appellant's mother abused the respondent in filthy language, created a big scene in the Hospital itself. The appellant's parents took her to their house. Due to the suppression of physical defect of the appellant, the respondent's father suffered and died. The respondent could not attend the Seemandham function of the appellant due to sudden death of the respondent's father. The appellant did not even console the respondent for death of his father. When the child was born, the appellant and her mother refused to allow the respondent to see the child. The appellant informed the respondent to dissolve the marriage. The respondent tried to maintain cordial relationship with the appellant, but she did not change her attitude. After initial marital life, the appellant did not consider the respondent as her husband and stated that she committed a mistake in marrying the respondent. The attitude of the appellant <https://www.mhc.tn.gov.in/judis> has caused untold miseries and ruined his life socially, psychologically and mentally. The appellant has taken all the jeweleries and after that, she lodged a false complaint against the respondent, his brother and mother, to the Police. The efforts of the respondent through his relatives to resume cohabitation failed. After the birth of the child, the respondent did not come to matrimonial home. Over phone also the appellant tortured the respondent. The respondent got a tattoo of his mother's name in his right hand on the 30th wedding anniversary of his parents due to love and affection for his parents. For the same, the appellant and her mother insulted him using filthy language, abusing the relationship. This activities of the appellant created a mental depression for the respondent and peace of mind of the respondent has been spoiled. Hence, the

respondent has filed the petition for dissolution of marriage that was conducted on 14.09.2008.

3.The appellant filed counter statement and denied all the averments made in the petition. According to the appellant, after betrothal and before marriage, the respondent visited the appellant's house many times. The appellant informed the respondent about the fracture in her right hand. After <https://www.mhc.tn.gov.in/judis> marriage, she lived in matrimonial home. During that time, the appellant was ill-treated by the respondent and his family members. The respondent did not attend the Seemandam function of the appellant. One Paramesh met the appellant's father in the office and introduced himself as brother-in-law of one Gandhimathi, who is working in the office of the respondent. The said Paramesh informed the appellant's father that the respondent told Gandhimathi that the appellant is paralyzed, the respondent is not happy in matrimonial life, he has initiated proceedings for divorce and after divorce, he would marry the said Gandhimathi. On hearing this, the appellant's father went to the said Gandhimathi's house and informed her about the matrimonial relationship between the appellant and respondent and birth of child. On confirming the attitude of the respondent from Gandhimathi, the appellant lodged a complaint on 30.08.2009, before the All Women Police Station, Saidapet, against the respondent. During enquiry in the Police Station, the respondent gave an undertaking that he would take the appellant and child with him. Contrary to the undertaking, the respondent filed present O.P. on 07.09.2009 for dissolution of marriage. The appellant is always ready and willing to join the respondent and prayed for dismissal of O.P. <https://www.mhc.tn.gov.in/judis>

4.Before the Family Court, Chennai, the respondent examined himself as P.W.1 and marked 4 documents as Exs.P1 to P4. The appellant examined herself as R.W.1, but did not mark any document. The learned Judge, considering the pleadings, oral and documentary evidence let in by the respondent, held that the respondent is entitled to get the relief of dissolution of marriage and allowed the O.P. as prayed for. Against the said order, the appellant has come out with the present appeal.

5.The learned counsel appearing for the appellant contended that the respondent ill-treated the appellant and did not care for the appellant. The respondent also did not take care of the appellant during pregnancy time when she was in her parent's house. The respondent did not even know whether the child born is male or female, as he has stated in the petition as male child, while she delivered a female child. Only the respondent neglected the appellant. The respondent cannot take advantage of his own wrong. The respondent made arrangements to marry one of his colleague, Gandhimathi. <https://www.mhc.tn.gov.in/judis> When appellant's father tried to stop the same, the respondent's brother threatened the appellant with dire consequences over phone. The appellant lodged complaint with Police and respondent agreed to take the appellant and child, but he filed present O.P. for dissolution of marriage. The learned Judge failed to see that appellant's mother lodged complaint only with a view to stop the respondent from marrying again. The respondent failed to prove the alleged cruelty. The learned Family Court Judge erroneously held that the appellant did not file any petition for restitution of conjugal rights, when the appellant has stated that she is ready for re-union and prayed for dismissal of the O.P. filed by the respondent. The Tribunal, without considering the evidence let in by the appellant, erroneously relying on the

statement of the respondent as P.W.1, dissolved the marriage.

6.The learned counsel appearing for the appellant raised a technical plea for dismissal of O.P.No.2864 of 2009 on the ground that the respondent has filed O.P. before expiry of one year from the date of marriage. The learned counsel contended that as per Section 14 of the Hindu Marriage Act, a petition under Section 13 of the Act can be initiated only after expiry of one year from <https://www.mhc.tn.gov.in/judis> the date of marriage. A petition filed in violation of mandatory provision contained in Section 14 of the Act is not maintainable and hence, prayed for setting aside the order of the learned Judge allowing the appeal.

7.The learned counsel appearing for the respondent reiterated the averments made in the petition and contended that the learned Judge rightly allowed the petition after properly appreciating the pleadings, oral and documentary evidence let in before it. The learned counsel appearing for the respondent submitted that even though the petition was filed 6 days prior to expiry of one year from the date of marriage, the petition was numbered after expiry of one year and appellant entered appearance after expiry of one year 3 months i.e., on 16.12.2009. Therefore, the contention of the learned counsel appearing for the appellant is not valid and prayed for rejection of the said contention and dismissal of the appeal.

8.Heard the learned counsel appearing for the appellant as well as the respondent and perused the entire materials available on record. <https://www.mhc.tn.gov.in/judis>

9.The points for consideration in this appeal are:

(i) Whether O.P. filed 6 days earlier to expiry of one year from the date of marriage is maintainable.

(ii) Whether the respondent is entitled to dissolution of marriage conducted on 14.09.2008, between the respondent and appellant or whether order of the Family Court dated 17.12.2014 is to be set aside.

Point (i) 10.1 Section 13 of the Hindu Marriage Act enumerates grounds for filing a petition seeking dissolution of marriage conducted between the petitioner and respondent. Section 14 of the Hindu Marriage Act restricts the Courts to entertain a petition for dissolution of marriage before expiry of one year from the date of marriage. When a petition is filed before expiry of one year, whether it will result in automatic dismissal or not depends on whether the said restriction is mandatory or directory. Earlier, the restriction was three years. The three years restriction was substituted as one year with effect from 27.05.1976 by the Act 68 of 1976.

<https://www.mhc.tn.gov.in/judis> 10.2 The restriction of one year contained to Section 14 of the Hindu Marriage Act is only directory and not mandatory for two reasons:

Firstly, the Act did not contain any provision for consequences of non-compliance of time limit prescribed in Section 14.

Secondly, as per the proviso to Section 14, the Court has power to permit the petitioner to file petition before expiry of one year on the application of the petitioner claiming exceptional hardship or exceptional depravity on the part of the respondent. The Court has further power to dismiss the petition or pass decree which will come into force after expiry of one year if the Court at the time of hearing the O.P. comes to the conclusion that the petitioner has obtained permission of misrepresentation or concealment of the nature of the case.

10.3 A reading of the proviso makes it clear that a petition can be filed <https://www.mhc.tn.gov.in/judis> before lapse of one year of date of marriage by obtaining permission from the Court. This permission can be obtained even after filing a petition for dissolution of marriage. Further, it is seen that even if the petitioner has obtained permission on misrepresentation or concealment of nature of case, the Court has jurisdiction to pass a decree of dissolution to come into force after expiry of one year.

10.4 The scope of Section 14 of the Hindu Marriage Act was considered by this Court in the following cases reported in:

(i) 1999 (1) CTC 2010 [Indumathi Vs. Krishnamurthy]

(ii) 2013 (2) CTC 320 [G.Ganesh Babu Vs. A.P.Arthi]

(iii) 2017 SCC Online Mad 17063 [S.Gugan Vs. R.Nisha], Order dated 24.03.2017 made in C.R.P.(PD).No.2924 of 2016.

In all the above orders, this Court has held that restriction imposed in Section 14 of the Hindu Marriage Act is only directory and not mandatory.

10.4a In the judgment reported in 2013 (2) CTC 320 (referred to <https://www.mhc.tn.gov.in/judis> above), scope of Section 14 has been elaborately dealt with. The relevant portions are extracted hereunder:

“15. A mere running of the eye over the aforesaid precedents would highlight and spotlight the fact that the Division Bench of the Calcutta High Court in *Rabindra Nath Mukherjee v. ITI Mukherjee alias Chatterjee* reported in CDJ 1991 Cal HC 017, held that seeking leave of the Court within one year to file the petition for divorce from the date of marriage, was only directory and not mandatory and the said decision was followed by the learned Single Judge of this Court in *Indumathi v. Krishnamurthy* reported in 1998 (III) MLJ 435. The aforesaid decision of this Court is also followed by the learned Single Judge of the Calcutta High Court in *Smt. Priyanka Maity (Ghosh) v. Shri Sabyasachi Maity* reported in CDJ 2012 Cal HC 140. However, the Division Bench of the Karnataka High Court took a different view of the matter in *Sharma H.Kasinath v. Shoba* reported in AIR 2010 KARNATAKA 168.

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24.The learned Single Judge of this Court in the precedent cited supra very correctly and appreciably referred to the fact that the legislators never thought that if there is any filing of application for divorce within one year from the date of marriage, automatically that should be dismissed; even in a case where any leave was obtained by the party concerned on misrepresentation, yet the Court has got jurisdiction to pass a decree of divorce, stipulating that it shall come into effect after one year from the date of marriage. As such, that particular point loomed large in the mind of the learned Single Judge <https://www.mhc.tn.gov.in/judis> of this Court in deciding the lis by holding that the time stipulated therein was only directory and not mandatory.

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27. On the other hand, as correctly held by the learned Single Judge of this Court earlier, in the decision cited supra, even a person who got leave by misrepresentation was given the benefit of divorce, but that would take effect after one year from the date of marriage. Hence, I am of the considered view that the decision of the learned Single Judge of this Court in *Indumathi v. Krishnamurthy* reported in 1998 (III) MLJ 435 with great respect is the binding precedent on the point concerned.

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34.As suggested by the learned Counsel for the husband, if the H.M.O.P., has to be dismissed, it would not be for anything, but for the wife to file a fresh H.M.O.P., on the same grounds. As such, the same process already underwent would enure. The multiplicity of proceedings should be avoided and obliterated. No doubt, the sanctity of the marriage should be preserved. Soon after the marriage, without taking steps for reconciliation, etc, and having sufficient time for reflection, they should not be allowed to approach the Court for divorce and in the meantime, one other aspect, this Court has to see. Unwittingly, if a person filed a petition for divorce without seeking leave and much water has already flown under the bridge in dealing with the said petition, it would not be proper to dismiss that petition on the technical ground after lapse of two years as in this case and it would amount to throwing the baby along with the bathe water.

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<https://www.mhc.tn.gov.in/judis>

36. My mind is redolent of the following legal maxims:

(i) "Actus curiae neminem gravabit". [An act of the court will prejudice no one.]

(ii) "Quod fieri non debet, factum valet." [What ought not to be done, when done, is valid.]

39. But, in this case, I do not think that the wife deliberately suppressing anything, filed such application without seeking leave. As such, I cannot simply hold that she was guilty of laches and magna neglegentia, and consequently, her conduct should be deprecated in filing the petition for divorce within one year from the date of marriage. Whenever anything has occurred unwittingly, the Court has to take a lenient view. On the other hand, if the Court could see that with due deliberation or malice any such petitions are found filed within one year period, then in such cases alone, strict view has to be taken. So far this case is concerned, the very factum that the wife had chosen to file the application in I.A.No.26 of 2012 virtually seeking ex post facto leave, would demonstrate and display her bona fides also. Hence, I am of the view that in these exceptional circumstances, no interference is required.

40. I take it as an opportunity to mandate all the Courts below concerned that hereafter whenever any petition for divorce is filed within a period of one year from the date of marriage, the Courts should invariably return that petition without numbering it and unless leave is obtained, such petition for divorce should not be entertained. Point Nos.(i) and (ii) are answered accordingly.

<https://www.mhc.tn.gov.in/judis> 10.4b. In the judgment reported in 2013 (2) CTC 320, earlier order reported in 1999 (1) CTC 210 was referred with approval.

10.4c. In the judgment reported in 2013 (2) CTC 320, this Court has held that:

1. Condition prescribing time limit for filing divorce is directory in nature and cannot be construed as mandatory.
2. Leave to file petition within one year is directory and not mandatory.

Such leave can be obtained even after filing the O.P.

3. The legislators never thought if there is any filing of application for divorce within one year from the date of marriage, the same has to be automatically dismissed.

4. The Court has got jurisdiction to pass a decree of divorce stipulating that it shall come into effect after one year from the date of marriage.

5. When the petition for divorce is filed before lapse of one year from the date of marriage without leave to file petition before one year, the Court must return the O.P.
<https://www.mhc.tn.gov.in/judis>

6. If a person filed a petition for divorce without seeking leave, it would not be proper to dismiss the petition on the technical ground after lapse of two years.

10.4d. The judgments reported in 1999 (1) CTC 210 and 2013 (2) CTC 320 (both cited supra) were followed in the order dated 24.03.2017, made in C.R.P.(PD).No.2924 of 2016, reported in 2017 SCC Online Mad 17063 (cited supra), and this Court has taken consistent stand that petition filed for

divorce within a period of one year from the date of marriage cannot be dismissed on technical ground after lapse of time, as much water has flown under the bridge in dealing with the said petition. This Court has also held that when the Court committed a mistake in numbering the O.P. without returning the same, the petitioner shall not suffer for the mistake committed by the Court.

10.4e. In para 40 of the judgment reported in 2013 (2) CTC 320, this Court directed all the Courts below to return any petition for divorce filed within one year of date of marriage without leave to file and unless leave is <https://www.mhc.tn.gov.in/judis> obtained, such petition for divorce should not be entertained.

10.4f. The reasons and ratio in the above 3 judgments referred to above are squarely applicable to the facts of the present case.

10.4g. In the case dealt by this Court in the judgment reported in 2013 (2) CTC 320, wife filed petition for divorce before expiry of one year from the date of marriage. The husband/respondent filed application for rejection of petition. At that time, wife filed application for leave to file the petition before expiry of one year. The Family Court allowed the application filed by the wife and dismissed the application filed by the husband. The husband filed C.R.P.(PD).(MD).Nos.2265 & 2266 of 2012. By dismissing both the Civil Revision Petitions, this Court held that petition filed by the wife for divorce cannot be dismissed after lapse of two years.

10.4h. In the present case, the appellant did not take the plea of maintainability in the Family Court as well as in the present grounds of appeal.

<https://www.mhc.tn.gov.in/judis> 10.4i. This ground is taken by the counsel for the appellant only at the time of arguments. Such a plea taken after 13 years of filing of O.P. in the year 2009, cannot be accepted.

For the foregoing reasons, Point (i) is decided against the appellant. Point (ii)

11. From the materials on record, it is seen that the respondent has sought for dissolution of marriage on the ground of cruelty on the part of the wife/appellant. As per Section 13(1)(i-a) of the Hindu Marriage Act, 1955, cruelty is a ground for dissolution of marriage. The term cruelty is not defined in the Act. The question of cruelty was considered by this Court, various High Courts and the Hon'ble Apex Court. It is a settled law that cruelty may be physical or mental. When a party alleges physical cruelty against other party, the same can be proved by letting in acceptable oral and documentary evidence. As far as the mental cruelty is concerned, direct evidence may not be available and the Court has to decide on the basis of averments made by the party and facts established by evidence, whether mental cruelty is proved. Once the <https://www.mhc.tn.gov.in/judis> mental cruelty is proved, then Court has to consider the impact of such mental cruelty on the party who alleges the same. The Court has to consider the status of the parties, social background while deciding the mental cruelty and whether based on such proven mental cruelty, marriage has to be dissolved or not.

12. In the present case, the respondent has stated the mental cruelty meted out to him by the respondent as follows:

(i). The appellant ill-treated the respondent and his mother and abused them with filthy language.

(ii). After examination of the appellant with regard to pregnancy of the appellant by the Doctor, when the respondent sought for opinion of the Doctor from the appellant, the mother of the appellant created a scene and abused the respondent in filthy language in the Hospital itself in the presence of others.

(iii). The appellant has given false complaint of dowry demand not only against the respondent, but also against his brother and mother.

<https://www.mhc.tn.gov.in/judis>

(iv). The appellant, without any basis, suspected the character of the respondent stating that he was making arrangements to marry his colleague Gandhimathi.

(v). According to the appellant, the respondent, in view of love and affection for his parents, tattooed his mother's name on the 30th wedding anniversary of his parents. On seeing this, the appellant and her parents insulted the respondent and abused him in filthy language.

(vi). After initial marital bliss, the appellant did not show any interest in marital life and in cohabitation. She left the matrimonial home after 6 months of marriage and took the jewels on 24.08.2009 and did not give consortium and did not cohabit with the respondent.

(vii). Before the marriage, the appellant's right hand was fractured and plate was fixed. She also suffered from muscular spasticity. The appellant and her parents suppressed this fact. When the respondent confronted the <https://www.mhc.tn.gov.in/judis> appellant's parents with regard to suppression, they abused him.

The above averments have to be considered to decide whether the appellant has treated the respondent with cruelty.

13. Points (i), (ii) and (v):

(i). The appellant ill-treated the respondent and his mother, abused them with filthy language.

(ii). After examination of the appellant with regard to pregnancy of the appellant by the Doctor, the respondent sought for opinion of the Doctor from the appellant, the mother of the appellant created a scene and abused the respondent in filthy language in Hospital itself in the presence of others.

(v). According to the appellant, the respondent, in view of love and affection for his parents, tattooed his mother's name on the 25th wedding anniversary of his parents. On seeing this, the appellant and her parents insulted the respondent and abused him in filthy language.

13.1 The respondent has specifically made these averments in his petition and also as P.W.1, deposed to that effect. In the cross-examination of <https://www.mhc.tn.gov.in/judis> P.W.1, not even a suggestion was put to the effect that these averments are false. When a specific allegation of cruelty is made against the appellant and respondent as P.W.1 has deposed to that effect, the burden is shifted to the appellant to disprove the same in the cross-examination of P.W.1 and also in her evidence. The appellant as R.W.1, did not deny the above averments made by the respondent in her evidence. When the appellant ill-treats and abuses her mother-in-law, definitely, that will amount to mental cruelty to the respondent. Further, according to the respondent, the appellant's mother who is his mother-in-law created scene in the Hospital and abused him in filthy language. The appellant did not deny the same in the cross-examination of the respondent and in her chief examination as R.W.1. Further, the appellant has not examined her mother to prove the evidence of respondent that appellant's mother created scene and abused the respondent in the Hospital are false.

13.2 It is pertinent to note that appellant's sister, along with two others, went to the office of the respondent and assaulted him in his office. The appellant was aware of the said incident as she has admitted it in her cross-examination. Being assaulted in the office in front of his colleagues by sister <https://www.mhc.tn.gov.in/judis> of appellant is a great humiliation to the respondent. It would have definitely caused mental agony and it is nothing but a cruelty caused to the respondent even though only sister of the appellant along with two others assaulted him in the office of the respondent. This amounts to physical cruelty without any doubt.

14.Points (iii) and (iv):

(iii). The appellant has given false complaint of dowry demand not only against the respondent, but also against his brother and mother.

(iv). The appellant, without any basis, suspected the character of the respondent stating that he was making arrangements to marry his colleague Gandhimathi.

14.1 According to the appellant, the respondent was making arrangements to marry his colleague Gandhimathi by making false allegations against the appellant, which was informed to the father of the appellant by the brother-in-law of Gandhimathi. On hearing this, the appellant's father met Gandhimathi and showed marriage photo of appellant and respondent and appraised the said Gandhimathi about true facts, including birth of female <https://www.mhc.tn.gov.in/judis> child to the appellant and respondent. The appellant pleaded that she gave complaint against the respondent only for reunion. On the other hand, she admitted that she gave complaint against respondent and his mother as though they demanded dowry. The appellant has not stated in the counter statement that the respondent and his family members demanded dowry and treated her cruelly, demanding dowry and driven her out from the matrimonial home. From the evidence of

R.W.1, it is seen that she has given the said complaint after taking all her jewels from the matrimonial home. The appellant, without any basis, has given the complaint as though the respondent, his mother and his brother demanded dowry. In the counter statement, she suppressed the fact that complaint given by her is alleging demand of dowry by the respondent and his family members. But, she stated that she gave the complaint in order to prevent the respondent's marriage with his colleague Gandhimathi. The appellant has not let in any evidence that respondent was making such arrangement to get married to his colleague Gandhimathi. The appellant has given a false complaint to the Police and also made an allegation as though the respondent is making arrangements to get married again, which she failed to prove. This false complaint definitely amounts to mental cruelty which will affect not only the respondent, but also his family members, especially, his mother. The appellant has not examined her father to whom the brother-in-law of Gandhimathi alleged to have informed about the intention of respondent to get married to said Gandhimathi and about appellant's father meeting Gandhimathi and appraising her about appellant and minor child.

15.Point (vi) -

(vi). After initial marital bliss, the appellant did not show any interest in marital life and in cohabitation. She left the matrimonial home after 6 months of marriage and did not give consortium and did not cohabit with the respondent.

15.1 As far as the point (vi) is concerned, it is an admitted case that appellant left matrimonial home after 6 months of marriage. In the cross- examination, she admitted that after 6 months of marriage, she got separated from the respondent. After such separation, the appellant did not join the respondent and lead the matrimonial life. Even after birth of child, she did not come to matrimonial home with the child. Even though the appellant contends that she wants to join the respondent, she has not taken any effort to join the respondent. Neither the parents of the appellant nor any elders have approached the respondent and his family members for re-union. The appellant has also not taken any legal proceedings for restitution of conjugal rights even after respondent has filed the present O.P. for dissolution of marriage. When the wife withdraws her company from her husband without any reason and fails to cohabit her husband, that amounts to cruelty.

15.2 The Hon'ble Apex Court considered what amounts to mental cruelty and enumerated various circumstances which amount to mental cruelty. The relevant portion of the judgment reported in (2007) 4 SCC 511 [Samar Ghosh Vs. Jaya Ghosh] is extracted hereunder:

"101. No uniform standard can ever be laid down for guidance, yet we deem it appropriate to enumerate some instances of human behaviour which may be relevant in dealing with the cases of "mental Cruelty". The instances indicated in the succeeding paragraphs are only illustrative and not exhaustive:

(i) On consideration of complete matrimonial life of the parties, acute mental pain, agony and suffering as

would not make possible for the parties to live with each other could come within the broad parameters of mental cruelty.

(ii) On comprehensive appraisal of the entire matrimonial life of the parties, it becomes abundantly clear that situation is such that the wronged party cannot reasonably be asked to put up with such conduct and continue to live with other party.

(iii) Mere coldness or lack of affection cannot amount to cruelty, frequent rudeness of language, petulance of manner, indifference and neglect may reach such a degree that it makes the married life of the other spouse absolutely intolerable.

(iv) Mental cruelty is a state of mind. The feeling of deep anguish, disappointment, frustration in one spouse caused by the conduct of other for a long time may lead to mental cruelty.

(v) A sustained course of abusive and humiliating treatment calculated to torture, discommode or render miserable life of the spouse.

(vi) Sustained unjustifiable conduct and behaviour of one spouse actually affecting physical and mental health of the other spouse. The treatment complained of and the resultant danger or apprehension must be very grave, substantial and weighty.

(vii) Sustained reprehensible conduct, studied neglect, indifference or total departure from the normal standard of <https://www.mhc.tn.gov.in/judis> conjugal kindness causing injury to mental health or deriving sadistic pleasure can also amount to mental cruelty.

(viii) The conduct must be much more than jealousy, selfishness, possessiveness, which causes unhappiness and dissatisfaction and emotional upset may not be a ground for grant of divorce on the ground of mental cruelty.

(ix) Mere trivial irritations, quarrels, normal wear and tear of the married life which happens in day-to-day life would not be adequate of the grant of divorce on the ground of mental cruelty.

(x) The married life should be reviewed as a whole and a few isolated instances over a period of years will not amount to cruelty. The ill conduct must be persistent for a fairly lengthy period. where the relationship has deteriorated to an extent that because of the acts and behaviour of a spouse, the wronged party finds it extremely difficult to live with the other party any longer, may amount to mental cruelty.

(xi) If a husband submits himself for an operation of sterilisation without medical reasons and without the consent or knowledge of his wife and similarly, if the wife

undergoes vasectomy or abortion without medical reason or without the consent or knowledge of her husband, such an act of the spouse may lead to mental cruelty.

(xii) Unilateral decision of refusal to have intercourse for considerable period without there being any physical incapacity or valid reason may amount to mental cruelty.

(xiii) Unilateral decision of either husband or wife after marriage not to have child from the marriage may amount to cruelty.

(xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction though supported by a legal tie. By refusing to sever that tie, the law in such cases, does not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties. In such like situations, it may lead to mental cruelty."

15.3 Clause (xiv) applies to the fact of the present case. As per this Clause, long period of continuous separation can fairly be concluded that matrimonial bond is beyond repair, marriage becomes fiction though supported by a legal tie. A party refusing to sever such a matrimonial tie causes mental cruelty to the other party. In the present case, the appellant and respondent are living separately from 24.08.2008 without cohabitation, which is an essential part of marital life. Clause (xiv) of the judgment of the Hon'ble Apex Court referred to above is squarely applicable to the facts of the present case.

15.4 In view of uncontroverted averments of respondent, evidence available on record as discussed above and Clause (xiv) of the judgment of the Hon'ble Apex Court reported in (2007) 4 SCC 511 (cited supra), this Court is of the opinion that appellant has caused mental cruelty to the respondent. The respondent is entitled to dissolution of marriage conducted on 14.09.2008 between her and the appellant and there is no reason or circumstances warranting to set aside the order dated 17.12.2014 made in O.P.No.2864 of 2009.

For the above reasons, Point (ii) is answered in favour of the respondent.

16.Point (vii) -

(vii).Before the marriage, the appellant's right hand was fractured and plate was fixed. She also suffered disorder. The appellant and her parents suppressed this fact. When the respondent confronted the appellant's parents with regard to suppression they abused him. The respondent has alleged that the appellant and his parents suppressed the illness of the appellant and that she cannot use both hands properly and cannot do household work. The illness of wife or her inability to do household work are not a ground for dissolution of marriage. The learned Judge has rightly rejected the said contention.

17.The learned Judge has considered the above issues along with the pleadings, oral and documentary evidence and held that the respondent proved the cruelty as alleged by him and the marital tie is beyond repair. The learned Judge has given cogent and valid reason for the said conclusion. There is no reason to interfere with such finding of the Tribunal and to set aside the impugned order.

For the above reason, the appeal is dismissed, confirming the judgment and decree passed in O.P.No.2864 of 2009. Consequently, connected Miscellaneous Petition is closed. No costs.

(V.M.V., J)

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Index : Yes / No
gsa

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V.M.VELUMANI, J.

and
S.SOUNTHAR, J.

(gsa)

To

1.The III Additional Judge,
Family Court,
Chennai.

2.The Section Officer,
VR Section,
High Court, Madras.

.07.2022

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